

## Opinion of the Court

persuade the FEC to treat AIPAC as a “political committee.” Respondents filed a complaint with the FEC, stating that AIPAC had made more than \$1,000 in qualifying “expenditures” per year, and thereby became a “political committee.” 1 Record, Exh. B, p. 4. They added that AIPAC had violated the FEC provisions requiring “political committee[s]” to register and to make public the information about members, contributions, and expenditures to which we have just referred. *Id.*, at 2, 9–17. Respondents also claimed that AIPAC had violated § 441b of FECA, which prohibits corporate campaign “contribution[s]” and “expenditure[s].” *Id.*, at 2, 16–17. They asked the FEC to find that AIPAC had violated the Act, and, among other things, to order AIPAC to make public the information that FECA demands of a “political committee.” *Id.*, at 33–34.

AIPAC asked the FEC to dismiss the complaint. AIPAC described itself as an issue-oriented organization that seeks to maintain friendship and promote goodwill between the United States and Israel. App. 120; see also Brief for AIPAC as *Amicus Curiae* (AIPAC Brief) 1, 3. AIPAC conceded that it lobbies elected officials and disseminates information about candidates for public office. App. 43, 120; see also AIPAC Brief 6. But in responding to the § 441b charge, AIPAC denied that it had made the kinds of “expenditures” that matter for FECA purposes (*i. e.*, the kinds of election-related expenditures that corporations cannot make, and which count as the kind of expenditures that, when they exceed \$1,000, qualify a group as a “political committee”).

To put the matter more specifically: AIPAC focused on certain “expenditures” that respondents had claimed were election related, such as the costs of meetings with candidates, the introduction of AIPAC members to candidates, and the distribution of candidate position papers. AIPAC said that its spending on such activities, even if election related, fell within a relevant exception. They amounted, said AIPAC,